

In *Pineda v. Bank of America, N.A.* (2010) 50 Cal.4th 1389, 1401, the California Supreme Court held:

By contrast, permitting recovery of section 203 penalties via the UCL would not 'restore the status quo by returning to the plaintiff funds in which he or she has an ownership interest.' [citation] Section 203 is not designed to compensate employees for work performed. Instead, it is intended to encourage employers to pay final wages on time, and to punish employers who fail to do so. In other words, it is the employers' action (or inaction) that gives rise to section 203 penalties. The vested interest in unpaid wages, on the other hand, arises out of the employees' action, i.e., their labor. Until awarded by a relevant body, employees have no comparable vested interest in View more Negative Treatments section 203 penalties. We thus hold section 203 penalties cannot be recovered as restitution under the UCL.

(Id. at 1401-1402.)

Here, Plaintiff seeks waiting time penalties through the UCL. Accordingly, the demurrer is sustained as to this cause of action, with a final opportunity to amend this claim.

Plaintiff is granted 10 days leave to file an amended complaint as noted above.

Moving Defendants to give notice.

2. Upcoming CMC

The action is still not at-issue. As such, **the court CONTINUES the scheduled 8/3/26 Case Management Conference to 11/30/26, at 10:00 am in Dept. W8.** All appearing parties SHALL file and serve a timely case management statement at least 15 calendar days prior to the continued hearing as required by the rules, including California Rules of Court rule 3.725 and Local Rule 369.

Plaintiff to give notice.

17	Romero vs. Herrera	<u>Motion to Strike (re First Amended Complaint)</u> The court DENIES Defendant JENESSA ANGELINE HERRERA’s motion to strike the claim for exemplar/punitive damages of the First Amended Complaint (FAC) filed by Plaintiffs BERNABE ROMERO, MARCELA SANCHEZ, YOSELIN ROMERO, and DAYANA ROMERO. To plead a claim to recover punitive damages, a plaintiff must plead and show one of the following bases for imposition of exemplary damages, i.e. malice, oppression, or fraud. (Civ. Code, § 3294(a).) The statute defines “malice” to mean “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294(c)(1).) Conduct carried on with a willful and conscious disregard of the rights or safety of others but that is not despicable will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) “Despicable conduct” is conduct that is so “vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (<i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as “having the character of outrage frequently associated with crime.” (<i>Id.</i>) A complaint must allege specific factual allegations to support a request for punitive damages. (See, e.g., <i>Anschutz Entertainment Group, Inc. v. Snepp</i> (2009) 171 Cal.App.4th 598, 643 [allegations that defendant’s conduct was intentional, willful, malicious, performed with ill will, and in conscious disregard of plaintiffs’ rights does not satisfy the specific pleading requirement].) “Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a